

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
CLERK

10 APR -9 AM 10:10

ROBERT BIRCH,

U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

Plaintiff,

COMPLAINT

-against-

CV 10-1584
JURY TRIAL DEMANDED

THE CITY OF NEW YORK, UNDERCOVER
29443, and P.O.s JOHN and JANE DOE #1-10,
individually and in their official capacities, (the names John
and Jane Doe being fictitious, as the true names are
presently unknown),

TOWNES, J.

Reyes, M. J.

Defendants.

Plaintiff ROBERT BIRCH, by his attorney, ROSE M. WEBER, complaining of the
defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331 and 1343.

VENUE

4. Venue is properly laid in the Eastern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff ROBERT BIRCH is an African-American male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

7. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant THE CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

9. That at all times hereinafter mentioned, the individually named defendants UNDERCOVER # 29443 and P.O.s JOHN and JANE DOE #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

INCIDENT FACTS

13. On July 7, 2007, at approximately 5:00 p.m., plaintiff ROBERT BIRCH was lawfully present in front of 2940 W. 21st Street, in the County of Kings, in the City and State of New York.

14. At aforesaid time and place, plaintiff ROBERT BIRCH did not possess or sell crack cocaine or any other unlawful substance.

15. At aforesaid time and place, plaintiff ROBERT BIRCH was not behaving in a manner that would suggest to any reasonable police officer that plaintiff possessed or sold crack cocaine or any other unlawful substance.

16. At aforesaid time and place, plaintiff ROBERT BIRCH was suddenly accosted by members of the New York City Police Department, including defendants UNDERCOVER # 29443 and P.O.s JOHN and JANE DOE #1-10.

17. Defendants handcuffed plaintiff ROBERT BIRCH too tightly and placed him under arrest for possession of crack cocaine, despite defendants' knowledge that they lacked probable cause to do so.

18. As a result of being handcuffed too tightly, plaintiff ROBERT BIRCH sustained physical injuries.

19. Defendants refused to view videotape that would have shown that plaintiff ROBERT BIRCH did not possess or sell crack cocaine or any other unlawful substance.

20. Defendants transported plaintiff ROBERT BIRCH to the 60th Precinct of the New York City Police Department in Brooklyn, New York.

21. While at the precinct, plaintiff ROBERT BIRCH was subjected to an unlawful strip search.

22. Plaintiff ROBERT BIRCH was then transported to Brooklyn Central Booking.

23. Defendant UNDERCOVER # 29443 falsely swore in a criminal court affidavit that plaintiff ROBERT BIRCH possessed and sold crack cocaine.

24. Plaintiff ROBERT BIRCH was held and detained in police custody for approximately one week.

25. Defendant UNDERCOVER # 29443 initiated criminal proceedings against plaintiff ROBERT BIRCH despite defendant's knowledge that s/he lacked probable cause to do so.

26. During the period between July 7, 2007 and November 14, 2007, plaintiff ROBERT BIRCH was required to make court appearances to defend himself in the criminal proceedings that defendants had initiated against him.

27. On or about November 14, 2007, all charges against plaintiff ROBERT BIRCH were dismissed.

28. As a result of the foregoing, plaintiff ROBERT BIRCH sustained, *inter alia*, physical injuries, emotional distress, embarrassment, and humiliation, and deprivation of his constitutional rights.

MONELL FACTS

29. Upon information and belief, at all times hereinafter mentioned, defendants were assigned to Brooklyn South Narcotics.

30. Both before and after the arrest of plaintiff ROBERT BIRCH, a custom and practice of lawlessness and corruption pervaded Brooklyn South Narcotics.

31. As a direct result of this custom and practice, defendants felt free to arrest plaintiff without probable cause and to manufacture evidence against him.

32. This custom and practice was finally exposed in January of 2008, when four officers from Brooklyn South Narcotics were arrested and charged with criminal offenses.

33. Shortly thereafter, another Brooklyn South Narcotics officer was suspended and fifteen more were placed on desk duty.

34. In the wake of this scandal, the citywide narcotics commander was relieved of his post, and the head of Brooklyn South Narcotics and two captains were transferred.

35. Upon information and belief, because of the custom and practice of corruption and lawlessness at Brooklyn South Narcotics, more than 150 criminal prosecutions had to be dismissed by the Kings County District Attorney's Office.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

36. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "35" with the same force and effect as if fully set forth herein.

37. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

38. All of the aforementioned acts deprived plaintiff ROBERT BIRCH of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

39. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

40. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

41. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "41" with the same force and effect as if fully set forth herein.

43. As a result of the aforesaid conduct by defendants, plaintiff ROBERT BIRCH was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

44. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, without probable cause.

THIRD CLAIM FOR RELIEF
FAILURE TO INTERVENE

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "44" with the same force and effect as if fully set forth herein.

46. Each and every individual defendant had an affirmative duty to intervene on plaintiff's behalf to prevent the violation of his constitutional rights.

47. The individual defendants failed to intervene on plaintiff's behalf to prevent the violation of his constitutional rights despite having had a realistic opportunity to do so.

48. As a result of the aforementioned conduct of the individual defendants, plaintiff's constitutional rights were violated and he was subjected to false arrest, malicious prosecution, and excessive force.

FOURTH CLAIM FOR RELIEF
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

49. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "48" with the same force and effect as if fully set forth herein.

50. Defendants issued legal process to place plaintiff ROBERT BIRCH under arrest.

51. Defendants arrested plaintiff ROBERT BIRCH in order to obtain a collateral objective outside the legitimate ends of the legal process.

52. Defendants acted with intent to do harm to plaintiff ROBERT BIRCH without excuse or justification.

FIFTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

54. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff's constitutional rights.

55. As a result of the aforementioned conduct of defendants, plaintiff ROBERT BIRCH was subjected to excessive force and sustained physical injuries.

SIXTH CLAIM FOR RELIEF
UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “55” with the same force and effect as if fully set forth herein.

57. Defendants strip-searched plaintiff ROBERT BIRCH in the absence of any individualized reasonable suspicion that plaintiff was concealing weapons or contraband.

58. As a result of the foregoing, plaintiff ROBERT BIRCH was subjected to an illegal and improper strip search.

59. The foregoing unlawful strip search violated plaintiff’s constitutional right to privacy, as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

SEVENTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “59” with the same force and effect as if fully set forth herein.

61. Defendants misrepresented and falsified evidence before the District Attorney.

62. Defendants did not make a complete and full statement of facts to the District Attorney.

63. Defendants withheld exculpatory evidence from the District Attorney.

64. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff ROBERT BIRCH.

65. Defendants lacked probable cause to initiate criminal proceedings against plaintiff ROBERT BIRCH.

66. Defendants acted with malice in initiating criminal proceedings against plaintiff ROBERT BIRCH.

67. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff ROBERT BIRCH.

68. Defendants lacked probable cause to continue criminal proceedings against plaintiff ROBERT BIRCH.

69. Defendants acted with malice in continuing criminal proceedings against plaintiff ROBERT BIRCH.

70. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceeding.

71. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff ROBERT BIRCH's favor on November 14, 2007, when all charges against him were dismissed.

EIGHTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY

72. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "71" with the same force and effect as if fully set forth herein.

73. Defendants arrested and incarcerated plaintiff ROBERT BIRCH in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

74. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

75. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices,

procedures, and rules of the City of New York, the New York City Police Department, and Brooklyn South Narcotics, all under the supervision of ranking officers of said department and division.

76. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, the New York City Police Department, and Brooklyn South Narcotics include, but are not limited to, the following unconstitutional practices:

- a) wrongfully arresting minority individuals on the pretext that they were involved in drug transactions;
- b) manufacturing evidence against individuals allegedly involved in drug transactions; and
- c) strip-searching prisoners in the absence of any individualized reasonable suspicion.

77. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- **Corey Avent v. City of New York**, United States District Court, Eastern District of New York, 04 CV 2451;
- **Reginald McMillan v. City of New York**, United States District Court, Eastern District of New York, 04 CV 3990;
- **Michael A. Smith v. City of New York**, United States District Court, Eastern District of New York, 04 CV 1045;
- **Benjamin Taylor v. City of New York**, United States District Court, Eastern District of New York, 01 CV 5750;
- **Theodore Richardson v. City of New York**, United States District Court, Eastern District of New York, 02 CV 3651;
- **Dwayne Cooper v. City of New York**, United States District Court, Eastern District of New York, 06 CV 2139;
- **Mike Rivera v. City of New York**, United States District Court, Eastern District of New York, 08 CV 4555;

- **Haile Dabreo v. City of New York**, United States District Court, Eastern District of New York, 08 CV 4698; and
- **Moses Boyd v. City of New York**, United States District Court, Eastern District of New York, 08 CV 4457.

78. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York, the New York City Police Department, and Brooklyn South Narcotics constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff ROBERT BIRCH.

79. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York, the New York City Police Department, and Brooklyn South Narcotics were the direct and proximate cause of the constitutional violations suffered by plaintiff ROBERT BIRCH as alleged herein.

80. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York, the New York City Police Department, and Brooklyn South Narcotics were the moving force behind the constitutional violations suffered by plaintiff ROBERT BIRCH as alleged herein.

81. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York, the New York City Police Department, and Brooklyn South Narcotics, plaintiff ROBERT BIRCH were falsely arrested and incarcerated, maliciously prosecuted, and strip-searched.

82. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff ROBERT BIRCH.

83. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff's constitutional rights.

84. All of the foregoing acts by defendants deprived plaintiff ROBERT BIRCH of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have excessive force imposed upon them;
- D. To be free from unlawful search;
- E. To be free from malicious abuse of process;
- F. To be free from unwarranted and malicious criminal prosecution;
- G. Not to have cruel and unusual punishment imposed upon them; and
- H. To receive equal protection under the law.

85. As a result of the foregoing, plaintiff is entitled to compensatory damages in the sum of three million dollars (\$3,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of three million dollars (\$3,000,000.00).

WHEREFORE, plaintiff ROBERT BIRCH demands judgment in the sum of three million dollars (\$3,000,000.00) in compensatory damages and three million dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs, and disbursements of this action.

Dated: New York, New York
April 5, 2010


ROSE M. WEBER (RW 0515)
225 Broadway, Suite 1607
New York, NY 10007
(212) 748-3355

JS 44 (Rev. 11/04)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the rules and service of process or other papers as required by the Federal Rules of Civil Procedure as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM.)

I. (a) PLAINTIFFS

Robert Birch

(b) County of Residence of First Listed Plaintiff Kings
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorney's (Firm Name, Address, and Telephone Number)
Rose M. Weber 212-748-3355
225 Broadway, Suite 1608
New York, NY 10007

DEFENDANTS

City of New York, Undercover # 29443,
and P.O.s John and Jane Doe #1-10
County of Residence of First Listed Defendant

(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE
LAND INVOLVED.

Attorneys (If Known) Office of the Corporation Counsel
100 Church Street
New York, NY 10007

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☒ 3 Federal Question (U.S. Government Not a Party)
☐ 2 U.S. Government Defendant
☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | | | |
|---|---|---|---|
| Citizen of This State | PTF ☐ 1 DEF ☐ 1 | Incorporated or Principal Place of Business in This State | PTF ☐ 4 DEF ☐ 4 |
| Citizen of Another State | PTF ☐ 2 DEF ☐ 2 | Incorporated and Principal Place of Business in Another State | PTF ☐ 5 DEF ☐ 5 |
| Citizen or Subject of a Foreign Country | PTF ☐ 3 DEF ☐ 3 | Foreign Nation | PTF ☐ 6 DEF ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury	PERSONAL INJURY ☐ 362 Personal Injury - Med. Malpractice ☐ 365 Personal Injury - Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	FORFEITURE/PENALTY ☐ 610 Agriculture ☐ 620 Other Food & Drug ☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 630 Liquor Laws ☐ 640 R.R. & Truck ☐ 650 Airline Regs. ☐ 660 Occupational Safety/Health ☐ 690 Other	BANKRUPTCY ☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark	OTHER STATUTES ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 810 Selective Service ☐ 850 Securities/Commodities/Exchange ☐ 875 Customer Challenge 12 USC 3410 ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 892 Economic Stabilization Act ☐ 893 Environmental Matters ☐ 894 Energy Allocation Act ☐ 895 Freedom of Information Act ☐ 900 Appeal of Fee Determination Under Equal Access to Justice ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	TORTS ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 444 Welfare ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☒ 440 Other Civil Rights	PRISONER PETITIONS ☐ 510 Motions to Vacate Sentence Habeas Corpus: ☐ 530 General ☐ 535 Death Penalty ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition	LABOR/EMPLOYMENT ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Mgmt. Relations ☐ 730 Labor/Mgmt. Reporting & Disclosure Act ☐ 740 Railway Labor Act ☐ 790 Other Labor Litigation ☐ 791 Empl. Ret. Inc. Security Act	SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g))	FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609

V. ORIGIN

(Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from another district (specify)
☐ 6 Multidistrict Litigation
☐ 7 Appeal to District Judge from Magistrate Judgment

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity): 42 U.S.C. § 1983

VI. CAUSE OF ACTION

Brief description of cause: civil rights violations including false arrest, excessive force, mal pro

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23
 DEMAND \$
 CHECK YES only if demanded in complaint:
 JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE

SIGNATURE OF ATTORNEY OF RECORD

Rose M. Weber

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

SLT

MAG. JUDGE

RER

10-1584

ARBITRATION CERTIFICATION

I, Rose M. Weber, counsel for plaintiff(s) do hereby certify pursuant to the Local Arbitration Rule 83.10 that to the best of my knowledge and belief the damages recoverable in the above captioned civil action exceed the sum of \$150,000 exclusive of interest and costs.
Relief other than monetary damages is sought.

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

Please refer to NY-E Division of Business Rule 50.1(d)(2)

1.) Is the civil action being filed in the Eastern District of New York removed from a New York State court located in Nassau or Suffolk County: no

2.) If you answered "no" above:

a.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? no

b.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? _____

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

Yes ☒

No _____

Are you currently the subject of any disciplinary action(s) in this or any other state or federal court?

Yes _____ (If yes, please explain)

No ☒

Please provide your E-MAIL Address and bar code below. Your bar code consists of the initials of your first and last name and the last four digits of your social security number or any other four digit number registered by the attorney with the Clerk of Court.

(This information must be provided pursuant to local rule 11.1(b) of the civil rules).

ATTORNEY BAR CODE: RW 0515

E-MAIL Address: rose_weber@juno.com

I consent to the use of electronic filing procedures adopted by the Court in Administrative Order No. 97-12, "In re Electronic Filing Procedures(EFP)", and consent to the electronic service of all papers.

Signature: Rose M Weber